

24PR00953 Conservatorship of Ronald Marvin Bernstein

County: sonoma

Division: Probate

Hearing date: 2026-07-17

Motion: Petition to Transfer Conservatorship

Source URL:

<https://sonoma.courts.ca.gov/online-services/tentative-rulings/probate-tentative-rulings/conservatorship-tentative-rulings>

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Conservatorship of Ronald Marvin Bernstein

24PR00953

Account & Report

Petition to Transfer Conservatorship

Tentative Ruling: NO APPEARANCES REQUIRED. This matter is on calendar for two purposes. Firstly, status of Petition to Transfer Conservatorship to the State of Washington and secondly, for Account and Report. There is presently no petition to transfer filed, though petitioner indicates a petition to establish a conservatorship (or the equivalent) in Washington State has been filed in that jurisdiction. There is a petition for approval of an account and report, and in addition relief unrelated to the approval of the account and report is included, namely the ability of the conservator to form and legally bind the conservatee to a limited liability company (LLC) for the purpose of managing real property rentals in which the conservatee's estate holds a 50% interest. The LLC agreement sets forth a broad purpose of the LLC to engage in the business of real property investment, including acquiring and developing real property. The purpose of the LLC is thus substantially greater than the mere maintenance and operation of the real property interest currently owned by the conservatee. The Court appreciates the desire to limit liability of the conservatee's estate in connection with the real property business interest owned by him, but questions whether the plan proposed is overly broad, and designed to maximize profits as opposed to preserving assets for conservatee's maintenance. The Court notes there is no analysis included in the petition about the outcome of simply liquidating the conservatee's interests in the real property through fair market sale followed by investment of those funds. This portion of the petition is DENIED without prejudice. This Court is disinclined to make such an order just before it transfers the entire case to another jurisdiction, which jurisdiction will then be left to administer the conservatorship estate pursuant to that structure and deal with any consequences of the order. Any renewed request should be made in the receiving court.

The remaining two matters, status of transfer and account and report, are CONTINUED to September 18, 2026, at 9:30 a.m. in Department 63, to allow time for the conservator to address the issues listed in the Memorandum of Court Investigator [CI Memo] filed July 8, 2026 and to petition to transfer this case.